

complaint

Mrs S is unhappy with her home insurer, Ageas Insurance Limited, because it has declined a claim she made for storm damage to her roof.

background

Mrs S's flat roof was damaged in January 2018. Water came in and damaged her kitchen. There was a storm at the time of the damage and Mrs S made a claim to Ageas.

Ageas inspected the roof. It noted the roof was worn in places and felt it had likely reached the end of its natural life. It felt the storm had merely highlighted the state of the roof, rather than caused the damage. Ageas declined the claim. When it wouldn't change its view Mrs S complained to us.

Our investigator saw Ageas' report and photos that had been taken. He felt the conclusion reached was reasonable, especially as he'd seen no opposing expert opinion to counter it. But he did feel that, in line with our approach on these matters, Ageas should have accepted the claim in respect of internal damage.

Mrs S was unhappy in respect of the roof damage. She said that all roofs will have some deterioration and it wasn't fair for Ageas to decline her claim on that basis. Mrs S said there'd been no sign of any problem with the roof prior to the storm occurring.

Ageas didn't believe it should have to cover the internal damage. It said if the roof had been in a good state the internal damage wouldn't have occurred.

As neither party was satisfied by our findings the complaint was passed to me for a decision to be made.

my findings

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Mrs S didn't choose to take out accidental damage cover for her property. Her policy does offer cover in the event that her property is damaged by a storm. But it excludes damage caused by wear and tear. As do most policies on the market.

A storm did occur at the time of the damage. But that doesn't necessarily mean that weather caused the damage reported.

The roof in question is a flat felt roof. It is unusual for this type of roof to be damaged by a storm if it's in good condition. But it can happen. It's more often the case that damage occurs during a storm because that weather highlights pre-existing problems with the roof.

Mrs S didn't get an expert opinion on the cause of damage to her roof. She did say that her roofer said the damage was caused by winds. But I've not seen any report from the roofer. Or any explanation of what damage had actually occurred to the roof and why it was felt the storm had caused this.

When Ageas assessed the roof it was mostly covered. But the assessor noted cracked edges and the age of the roof. It was his opinion that the roof had most likely failed due to its age and he couldn't see any storm related damage.

The photos provided seem to support what the assessor said. Putting this together with the fact that flat roofs in good condition don't usually fail due to storms and that no expert opinion has been provided by Mrs S, I'm satisfied that Ageas's decline in respect of the roof damage was fair and reasonable.

That being said, Ageas should be familiar with this service's approach to internal damage that occurs during a storm. We say that even where the roof is found to be suffering from wear and tear, if internal damage occurs and there's no sign this has been on-going ie it is a direct result of the one-off storm event, we'll require an insurer to cover the internal damage.

The kitchen ceiling and walls, as well as the floor were reported to be wet. It isn't clear to me currently what repair to these areas might be needed. But Ageas' report doesn't suggest this damage was long standing or that rain had been getting in over a prolonged period. Therefore, I'm satisfied that Ageas should accept the claim as far as the internal damage is concerned.

Ageas did get things wrong as far as the internal damage was concerned. But Mrs S's main concern has always been the roof. So it is Ageas' decline in this respect that has caused her upset. And I'm satisfied its decline in that respect was fair and reasonable. Therefore, I'm not going to award any compensation.

my final decision

I uphold this complaint. I require Ageas Insurance Limited to accept Mrs S's claim for internal damage caused by storm and consider that part of her claim in line with the remaining policy terms and conditions.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mrs S to accept or reject my decision before 22 November 2019.

Fiona Robinson
ombudsman